

BOARD RESOLUTION

Standing Authorization for Housing Program Agreements
Transitional Housing Program – NILPF Framework (2026)

This document is part of a structured housing compliance system and should be used in conjunction with the Master Lease and related program documents.

1. PURPOSE

This Resolution establishes standing authority for the Organization to enter into housing-related agreements necessary to support its mission, including transitional housing, reentry housing, and program-based residential services.

2. STANDING AUTHORIZATION

The Board of Directors hereby grants ongoing authority for the Organization to enter into agreements with property-owning entities, including affiliated entities, for the purpose of securing and operating program-based housing.

This authorization eliminates the need for separate resolutions for each individual agreement, provided all agreements comply with the terms outlined herein.

3. ORDER OF EXECUTION

This Resolution is intended to be executed **prior to entering into any Master Lease Agreement** or related housing agreement.

If a Standing Resolution is not utilized, a Board Resolution must be executed as **Step 1** before any agreements are signed.

If agreements have been executed prior to this Resolution, this document shall serve to **ratify those actions**, provided they meet the conditions set forth herein.

4. DISCLOSURE OF RELATIONSHIPS

The Board acknowledges that agreements may involve entities with shared ownership, management, or control.

All such relationships are disclosed and reviewed in accordance with organizational governance standards.

5. RELATED PARTY STRUCTURES

Scenario A: Property Ownership by Board Member

The Organization may enter into agreements with properties owned by a member of the Board of Directors, provided that:

- The relationship is disclosed
 - The interested party abstains from decision-making where applicable
 - Terms reflect fair market value (FMV)
 - The agreement supports the mission of the Organization
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Scenario B: Common Control of Entities

The Organization may enter into agreements with entities under common ownership or control, including situations where the same individual operates both the property-owning entity and the nonprofit, provided that:

- The relationship is fully disclosed
 - The Board acknowledges and approves the structure
 - All terms reflect fair market value (FMV)
 - No private inurement or improper benefit occurs
 - The arrangement supports program operations and compliance
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6. TERMS AND CONDITIONS OF AGREEMENTS

All agreements executed under this Resolution must:

- Support the Organization's housing and program mission
 - Reflect fair market value (FMV) or program-aligned pricing
 - Be reasonable, necessary, and operationally justified
 - Avoid private inurement or improper personal benefit
 - Align with applicable program requirements and compliance standards
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7. FINANCIAL STRUCTURE

Approved financial structures may include:

- Fixed lease payments
- Program-based or per diem-supported occupancy
- Subsidy-aligned housing arrangements

All financial terms must be supported by documented cost justification and adjusted based on **local fair market value (FMV)**.

8. COMPLIANCE REQUIREMENT

All agreements must align with applicable housing and program standards, including but not limited to:

- Continuum of Care
 - VA Grant and Per Diem
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9. EXECUTION AUTHORITY

The Board authorizes the Executive Director or designated officer to execute agreements on behalf of the Organization in accordance with this Resolution.

10. RATIFICATION

Any agreements entered into prior to the adoption of this Resolution are hereby reviewed and ratified, provided they comply with the terms and conditions outlined herein.

11. EFFECTIVE DATE

This Resolution shall take effect immediately upon approval and shall remain in effect unless modified or revoked by the Board of Directors.

12. SIGNATURE

Board Chair: _____

Date: _____

Board Member: _____

Date: _____
